

2:00 PM LINE 2

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

Plaintiff Young Electric Co.'s Motion for Leave to File Second Amended Complaint

TENTATIVE RULING:

For the reasons stated below, Plaintiff Young Electric Co.'s ("Young Electric") Motion for Leave to File Second Amended Complaint ("SAC") is **GRANTED**.

BACKGROUND

On June 17, 2022, Truebeck Construction, Inc. ("Truebeck"), as general contractor, entered into a contract with Defendant SL 750G, LLC to perform construction work at 750 Gateway Boulevard in South San Francisco (the "project"). Defendant SmartLabs was a tenant at the property, and Defendant BMR-Gateway of Pacific II LLC, f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP, owns the property. Truebeck filed this lead action on March 28, 2024. This lead action has been consolidated with related matters, including Young Electric's action as a subcontractor that performed work on the project (San Mateo Superior Court Case No. 24CIV02352).

On June 26, 2024, Young Electric filed a verified First Amended Complaint to foreclose a mechanic's lien. Young Electric seeks leave to file the proposed verified SAC to: (1) correct an inadvertent error in the APN stated in the operative pleading and recorded mechanic's lien by substituting the correct APN 015-023-540; and (2) substitute SL 750G, LLC as a named defendant in place of Doe 1 based on discovery that it held a leasehold interest in the property and was not named in the First Amended Complaint.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on proper terms, to permit amendment of a pleading. Section 576 similarly permits amendment of a pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047-1048; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to permit

the amendment and allow the opposing party to challenge the pleading by demurrer, motion for judgment on the pleadings, or another appropriate procedure. (*Kittredge, supra*, 213 Cal.App.3d at p. 1048.)

DISCUSSION

All parties except FBNE signed a stipulation agreeing to the proposed SAC. (Sternik Decl., ¶ 12 & Exh. 3.) Young Electric's counsel contacted FBNE's counsel multiple times seeking agreement to the stipulation, but FBNE's counsel did not respond. (Sternik Decl., ¶ 13 & Exh. 4.) Young Electric therefore filed the Motion. To date, neither FBNE nor any other party has filed an opposition asserting prejudice from the proposed amendment. No trial date is set.

Because leave to amend is liberally granted and no party has shown prejudice, the Motion is **GRANTED**.

ORDER

Young Electric shall file and serve the Second Amended Complaint by September 24, 2026.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

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24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

Plaintiff Royal Glass Company, Inc.'s Motion for Leave to File a Name Correction Amendment

TENTATIVE RULING:

For the reasons stated below, Plaintiff's motion for leave to amend is **GRANTED**.

Plaintiff's requests for judicial notice are **GRANTED**, except as to "Fact Two" and "Fact Three," which impermissibly ask the Court to take judicial notice of, respectively, the absence of a public record and legal conclusions asserted from public records.

The Court declines to rule on Defendant's evidentiary objections because the challenged evidence is not material to disposition of this motion.

BACKGROUND

On April 2, 2024, Plaintiff Royal Glass recorded its original mechanic's lien, naming "BMR-Gateway of Pacific II LLC" as the owner or reputed owner. (RJN, Ex. A, Royal Glass Complaint, ¶ 28 & Ex. 3.) Plaintiff recorded an amended mechanic's lien on June 28, 2024, naming "BMR-700 GATEWAY, LP," "BMR-750 800 850 GATEWAY LP," and "BMR-Gateway of Pacific II LLC" as owners or reputed owners. (Id., ¶ 29 & Ex. 4.)

On June 28, 2024, Plaintiff filed its Complaint to foreclose a mechanic's lien in the amount of \$233,536 for unpaid supply and installation of exterior glass at the project commonly known as "SmartLabs." (RJN, Ex. A, Complaint.) The Complaint named BMR-750, 800, 850 Gateway LP and BMR Gateway of Pacific II LP as defendants but did not expressly name BMR Gateway of Pacific II LLC. The Complaint nevertheless attached and incorporated the original and amended mechanic's liens, which identify BMR Gateway of Pacific II LLC as an owner or reputed owner of the property. (Id., ¶¶ 28-29 & Exs. 3-4.)

On April 14, 2025, through counsel, Defendant BMR Gateway of Pacific II LLC ("Defendant LLC") signed a Notice and Acknowledgment of Receipt of Summons identifying itself as "BMR-Gateway of Pacific II, LLC (erroneously sued as BMR Gateway of the Pacific II, LP)." (RJN, Ex. H, Proof of Service and Notice and Acknowledgment of Receipt, § 3(b).)

On May 14, 2026, Defendant LLC filed an Answer to Plaintiff's Complaint identifying itself as "Defendant BMR-GATEWAY OF PACIFIC II LLC (erroneously sued herein as BMR-750, 800, 850 Gateway LP and BMR Gateway of Pacific II, LP)." (RJN, Ex. I, Defendant LLC's Answer.)

In this consolidated action, Plaintiff Royal Glass Company, Inc. now moves for leave to amend its Complaint to correct the failure to expressly name BMR Gateway of Pacific II LLC as a defendant.